

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2026PRTR065994: IN RE THE SEPARATE PROPERTY SURVIVOR'S TRUST OF THE
PRITIKIN FAMILY TRUST**

08/13/2026 in Department J6

**Hearing on Petition by Trustee to Establish Trust's Claim of Ownership, for Orde
Confirming or Directing Transfer to Trust**

Notice to Ameriprise must be given in the manner provided in Chapter 4 (commencing with Section 413.10) in Title 5 of Part 2 of the Code of Civil Procedure. (Prob. Code, § 851, subd. (a)(2).) This does not mean that a summons should be served but rather that the manner of service must be the same as for a summons (e.g., personal service, leaving and mailing copies, or by mail with notice and acknowledgement of receipt).

A basic principle of trust law is that one cannot declare a trust over property not yet acquired. (See Restatement (Third) of Trusts, § 41 ["An expectation or hope of receiving property in the future, or an interest that has not come into existence or has ceased to exist, cannot be held in trust."].) To include property acquired after the date of execution of a trust, a periodic trust amendment is needed "to capture any later acquired items not titled in the name of the trust." (*Kucker v. Kucker* (2011) 192 Cal.App.4th 90, 95.) A new general assignment of the assets would also suffice.

Petitioner is directed to serve and file a verified supplement providing evidence that the settlor owned the Ameriprise account at issue as of 11/14/24. Discuss.